

# Dr. Amrita Mohanty vs Sandeep Kumar Mohanty ... ... Opp. Party on 6 March, 2026

**Author: Mruganka Sekhar Sahoo**

**Bench: Mruganka Sekhar Sahoo**

IN THE HIGH COURT OF ORISSA AT CUTTACK  
W.P.(C) No.6722 of 2026

An application under Section 226 & 227 of Constitution of  
India.

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|-----------------------|----------|-----|------------|
| Dr. Amrita Mohanty    | ...      | ... | Petitioner |
|                       | -Versus- |     |            |
| Sandeep Kumar Mohanty | ...      | ... | Opp. Party |

Advocates appeared in the case:

|                |   |                                         |
|----------------|---|-----------------------------------------|
| For Petitioner | : | Mr. Ashwini Kumar Das,<br>Advocate      |
| For Opp. Party | : | Mr. Achyutananda Pattanaik,<br>Advocate |

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CORAM:  
THE HON'BLE MR. JUSTICE MRUGANKA SEKHAR SAHOO

JUDGMENT

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Decided on 06th March, 2026

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MRUGANKA SEKHAR SAHOO, J.

1. The petitioner-wife in the marriage is before this Court challenging the order dated 04.02.2026 passed by the learned Judge, Family Court-II, Bhubaneswar in C.P. No.1031 of 2025.
2. The said C.P. No.1031 of 2025 is a joint application filed by the husband and wife in the marriage invoking section 13(B)(1) of the Hindu Marriage Act seeking divorce on mutual consent and

dissolution of marriage which was solemnized on 13.05.2013 at Bhubaneswar.

3. To further the cause perused by the petitioner before the Family Court, the following factual aspects have been stated by both the parties in the petition before the learned Judge, Family Court-II, Bhubaneswar:

- (a) There has been disagreement and lack of understanding between the parties.
- (b) They have remained separated from each other for more than ten years.
- (c) Several litigations have been initiated at the instance of both the parties against each other.
- (d) Rs.15,00,000/- (rupees fifteen lakhs only) has been agreed as permanent alimony to be accepted by the petitioner-wife also for expenses of the child born from the wedlock who is now aged about twelve years.

4. Learned counsel for the petitioner was heard at length.

It is submitted that both the parties to the litigation are looking forward to their respective individual lives separately and prolonging the litigation would be against interest of both the parties.

5. At this stage, Mr. Achyutananda Pattanaik, learned counsel being present in Court submits that he has instruction to appear on behalf of the Opp. Party. He files the Vakalatnama duly executed by the Opp. Party-husband in the marriage.

The Vakalatnama shall be taken on record. Scanned copy be updated.

6. In view of appearance of Mr. A. Pattanaik, learned counsel and his associates on behalf of the Opp. Party, no further notice be issued to the Opp. Party.

7. Though, the matter is listed for fresh admission, Mr. Pattanaik, learned counsel seeks leave for addressing the Court and he is granted leave to address the Court.

It is submitted by the learned counsel for the Opp. Party-husband that the Opp. Party is completely in agreement with the prayer made in the present application that the matter should be expedited and closed at the earliest.

8. Further, Mr. Pattanaik, learned counsel on behalf of the Opp. Party-husband files a memo of date which states thus:

"Being the husband I along with wife (petitioner) has filed a petition before the Judge, Family Court for granted divorce. But the matter could not be disposed of and lingered for a number of dates, the petitioner wife approached this Hon'ble Court for

waive of the statutory period of six months.

I being the husband Opp. Party agree with the prayer of the petitioner and pray before this Hon'ble Court to allow the matter for better interest of justice." (sic) Memo is taken on record. Scanned copy be updated.

9. Mr. A.K. Das, learned counsel appearing for the petitioner-wife in the marriage refers to page 21 of the petition which is part of the I.A. No.61 of 2025 arising out of C.P. No.1031 of 2025, an application filed before the learned Judge, Family Court-II, Bhubaneswar under section 151 of CPC read with section 13-B(2) of Hindu Marriage Act to waive the statutory period. Paragraphs 3, 4, 5, 6, 7 and 8 of the said application are reproduced herein:

"3. Section 13 B (2) of Hindu Marriage Act read as follows;

"(2) On the motion of both the parties made no earlier than six months after the date of the presentation of the petition referred to in sub-section (1) and not later than eighteen months after the said date, if the petition is not withdrawn in the meantime, the court shall, on being satisfied, after hearing the parties and after making such inquiry as it thinks fit, that a marriage has been solemnized and that the averments in the petition are true, pass a decree of divorce declaring the marriage to be dissolved with effect from the date of the decree.]"

4. It has been settled by Hon'ble Apex Court in Amardeep Singh vs Harveen Kaur [2017 8 SCC 746] While considering a petition U/s 13 B (2) of Hindu Marriage Act, the court should consider:

(i) How long parties have been married?

(ii) How long litigation is pending?

(iii) How long they have been staying apart?

(iv) Are there any other proceedings between the parties?

(v) Have the parties arrived at genuine settlement which takes care of alimony, custody of child or any other pending issues between the parties?

5. It has been further held that if there is no chance of reunion and there are chances of fresh rehabilitation, the court should not be powerless in enabling the parties to have better option.

6. Following the conditions specified by the Hon'ble Apex Court in landmark case Amardeep Singh vs Harveen Kaur [2017 8 scc 746] the Present Parties have been living separately for more than 10 years and there is no chance of any reunion and parties have mutual agreement for compromises and for divorce. Wherein the issue of alimony and custody of child has been duly taken care of.

7. In the instant case the statutory period of 6 months specified in section 13 B(2), in addition to statutory period of one year U/s 13 B(1) of separation of parties is already over prior to filing of petition U/s 13 B(1).

8. The waiving of statutory period is necessary for the parties as they have been suffering both financially and mentally."

10. It is submitted by the learned counsel for the petitioner that despite filing of the application, learned Judge, Family Court-II, Bhubaneswar has not exercised its discretion to waive the statutory period as held by the Hon'ble Apex Court in Amardeep Singh v. Harveen Kaur<sup>1</sup>.

11. Both the learned counsel for the petitioner as well as the learned counsel for the Opp. Party seek interference of this Court for waiving of the statutory period as prescribed in section 13-B(2) of the Hindu Marriage Act "... six months after the date of presentation of the petition".

(2017) 8 SCC 746

12. In view of the submissions made by both the learned counsel for the parties to waive the statutory period for granting decree of divorce and in view of the law laid down by the Hon'ble Apex Court in Amardeep Singh (supra), it is directed that the learned Family Court-II, Bhubaneswar shall not detain itself awaiting completion of the statutory period as prescribed in section 13-B(2).

13. The learned Court shall proceed in the matter expeditiously to decide the application under section 13-B(2) in accordance with law as well as in the interest of justice as sought for by both the parties.

14. With the aforesaid direction, the petition is allowed and accordingly disposed of.

15. Urgent certified copy be issued as per Rules.

(Mruganka Sekhar Sahoo) Judge Orissa High Court, Cuttack The 06th March, 2026/Rajesh Signed by: RAJESH KUMAR BADHEI Location: HIGH COURT OF ORISSA, CUTTACK Date: 07-Mar-2026 19:44:18